Harris County District Court

Cause No. 2026-CV-0003

Nancy Johnson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Nancy Johnson

Date:	July 19, 2026
Location:	Offices of Gardner & Morris Law Group
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Sergio Acosta, Gardner & Morris Law Group

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record for this one. Counsel has the details in the file.

Q: Understood. Where were you on the day of the collision?

A: I was driving on a multi-lane road in Sugar Land, Texas, heading toward a shopping area. Traffic was moderate, mostly steady.

Q: Walk me through what happened right before impact.

A: I was in the right lane and needed to move left to get around a slower vehicle ahead. I checked my mirror, I signaled, and I started to move over. Then I felt a jolt on my passenger side. The other car had come up in the lane I was moving into.

Q: Did you see the other vehicle before you changed lanes?

A: Not that I can recall. I glanced at the mirror and saw nothing close enough to worry about. I have thought about that moment many times since.

Q: What happened after the contact?

A: My car pushed toward the median and I corrected the steering. I pulled onto the shoulder. I stayed in the car for a minute, then got out and spoke with the other driver.

Q: When did you first notice pain in your shoulder?

A: Within an hour or so. At first I thought it was tension from gripping the wheel. By that evening, lifting my arm past my shoulder hurt, and I couldn't sleep on that side.

Q: What treatment have you received?

A: I went to an urgent care clinic the same day, then was referred to an orthopedic practice. I've had imaging, a course of physical therapy two or three times a week, and I was given anti-inflammatory medication. I stlil do home exericses most mornings.

Q: How has the injury affected your daily life?

A: It's made ordinary things harder. I used to coach my kid's soccer team on weekends and I've had to hand that off. Dressing, reaching into the cupboard, and carrying groceries are all slower. I've also missed some work days when the pain flared up.

Q: Have you had any prior injuries to the same shoulder?

A: I had some stiffness years ago after a fall at home, but it resolved with a few weeks of rest. Before this accident I had no ongoing treatment for it.

Q: Are you still receiving treatment today?

A: Yes. My physical therapist and my doctor are still working on my range of motion, and we're discussing whether I'll need further evaluation.